

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

25CV-04746

Sikh Gurdwara of Los Banos vs. Surjit Singh, et al

Motion Defendant Surjit Singh's Notice of Motion and Motion for Preliminary Injunction

The motion for preliminary injunction is DENIED.

Cross-Defendant's objection to the reply declarations submitted in support of the motion for preliminary injunction is SUSTAINED.

This court previously stated a judge should generally avoid issuing a preliminary injunction that does not maintain the status quo of the litigation until a trial on the merits. Granting the preliminary injunction would materially change the positions of the parties and would not maintain the status quo.

Further, Defendant still has not shown a probability of success. The evidence in this matter is disputed. The fact that additional evidence continues to be presented underscores the court's finding that the evidentiary record is not sufficiently developed at this stage of litigation for the court to make a determination as to probability of either party prevailing on the merits.

As before, the moving party is free to circulate the court's order to any members of the church who are allegedly being misled so that everyone will know that the final determination of that dispute will be decided by the court following a trial on the merits.

Accordingly, the motion is denied.

26CV-00012

Bruce Austin vs Infinity Management and Investments, LLC, et al.

Motion to Compel Further Responses to Special Interrogatories

The motion to compel further responses to Special Interrogatories, Set One, is DENIED.

As an initial matter, the motion is not untimely. The 45 day limitation in bringing a motion to compel further responses only relates to *verified responses* and not objection only responses.

Except as to Special Interrogatory No. 1, as with Plaintiff's prior motion to compel further responses, the accompanying separate statement fails to adhere to Rules of Court, rule 3.1345.

As for Special Interrogatory No. 1, the interrogatory contains multiple subparts in violation of Code of Civil Procedure section 2030.060, subdivision (f). Accordingly, the motion is denied.

Motion of Motion and Motion to Compel Further Responses to Requests for Admission

The motion to compel further responses to Requests for Admission, Set One, is DENIED.

The accompanying separate statement fails to adhere to Rules of Court, rule 3.1345. Although Plaintiff attempts to cure the deficiency on reply, it is untimely. Accordingly, the motion is denied.

Motion of Motion and Motion to Compel Further Responses to Request for Production of Documents

The motion to compel further responses to Request for Production, Set One, is GRANTED IN PART AND DENIED IN PART.

As an initial matter, the motion is not untimely. The 45 day limitation in bringing a motion to compel further responses only relates to *verified responses* and not objection only responses, or where no responses were given at all.

Plaintiff's motion to compel a further response to Request for Production, Set One, No. 1, is GRANTED. Defendant's objections are OVERRULED.

Plaintiff's motion to compel further responses to Request for Production, Set One, Nos. 2 through 20, is DENIED. The accompanying separate statement as to these requests fails to adhere to Rules of Court, rule 3.1345.

Plaintiff's motion to compel a further response to Request for Production, Set One, Nos. 21 through 25, is GRANTED. Plaintiff states Defendant failed to provide any response to these requests and Defendant in opposition does not dispute that contention.

Defendant is to provide further code-compliant, verified responses, to Requests for Production, Set One, No. 1, and Nos. 21 through 25, within fifteen (15) days of this court's order.

Monetary Sanctions

All requests for monetary sanctions is DENIED. Each party is successful and unsuccessful in bringing and opposing the motions.

26CV-00790

Mirastar Federal Credit Union vs Andrea Ketchum, et al.

Motion to Set Aside Default and Default Judgment

The motion to set aside default and default judgment is DENIED.

Service in this matter appears to be timely and proper and Defendants' motion does not disturb that determination. Further, as noted by the opposition, the proposed answer would not render a different result. In the proposed answer, Defendants admit all the statements of the complaint are true, with a noted exception that does not provide a defense to the complaint. Accordingly, the motion is denied.